

## Suresh Chander v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 September 2024 · 2024:AHC:151264-DB · WRIT - C No. - 27673 of 2024 · **Writ disposed of; recovery withdrawn; fresh assessment permitted with costs**

### HEADNOTE

A Section 126 recovery citation issued without following Clause 6.8 of the U.P. Electricity Supply Code, 2005 should be withdrawn forthwith so the consumer is not forced to the High Court. After the Executive Engineer withdrew the 29 June 2024 citation and undertook a hearing and fresh order, the Court permitted the licensee to proceed afresh, disposed of the writ, and awarded costs of Rs. 10,000 to the petitioner, the Managing Director to decide whether the DISCOM or the officer would pay.

### FACTUAL SUMMARY

Suresh Chander challenged a recovery citation dated 29 June 2024 issued for electricity dues assessed under Section 126 of the Electricity Act, 2003. He alleged that the citation was issued without following the assessment procedure under Section 126 and Clause 6.8 of the U.P. Electricity Supply Code, 2005. After the Court sought instructions, the Executive Engineer withdrew the citation by communication to the District Magistrate dated 6 September 2024 and undertook to grant a hearing and pass a fresh order under the Supply Code.

### HOLDING-UNITS

#### INTERPLAY · UP-2005::6.8

withdrawal of defective s.126 recovery; fresh 6.8 hearing

#### HOLDING

Where a recovery citation founded on a Section 126 assessment is issued without following Clause 6.8 of the Supply Code, the citation should be withdrawn forthwith so that the consumer is not driven to the High Court. Recording the Executive Engineer's withdrawal of the 29 June 2024 citation and the undertaking to grant a hearing and pass a fresh order, the Court permitted the licensee to proceed afresh and disposed of the writ subject to costs of Rs. 10,000 to the petitioner, the Managing Director to decide whether the DISCOM or the concerned Executive Engineer would bear the cost. ¶ 2-9

### PRINCIPLE TAGS

**opportunity-before-final-assessment** A Section 126 recovery citation issued without following Clause 6.8 of the U.P. Electricity Supply Code, 2005 should be withdrawn forthwith so the consumer is not forced to the High Court.. ¶ 2-9

**s126-procedural-strictness-notice-and-hearing** A Section 126 recovery citation issued without following Clause 6.8 of the U.P. Electricity Supply Code, 2005 should be withdrawn forthwith so the consumer is not forced to the High Court.. ¶ 2-9

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — MERITS OF THE SECTION 126 ASSESSMENT AND QUANTUM OF ELECTRICITY DUES

The Executive Engineer withdrew the recovery and undertook a fresh hearing; the Court did not examine the assessment on merits. ¶ 3,7